

National Dalit Commission Act, 2017

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National Dalit Commission Act, 2074 (2017)

Date of Certification

2074.6.29 (October 15, 2017)

Amending Acts

1. Some Nepal Acts Amendment Act, 2075 (2018) 2075.11.19 (March 3, 2019)

Act Number 24 of the year 2074 (2017)

Preamble: Whereas, it is expedient to make necessary provisions with respect to the National Dalit Commission to respect the human rights of the Dalit community and to protect and promote their rights and interests, to empower that community, and to effectively integrate them into the mainstream of nation-building and development by ending caste-based discrimination and untouchability;

The Legislature-Parliament has enacted this Act in accordance with subsection (1) of Article 296 of the Constitution of Nepal. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "National Dalit Commission Act, 2074 (2017)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Chairperson" means the Chairperson of the Commission and that term also includes the Acting Chairperson.

(b) "Commission" means the National Dalit Commission established pursuant to Article 255 of the Constitution. Omitted by the Some Nepal Acts Amendment Act, 2075.(c)

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(e) "Dalit community" means the community defined by the Government of Nepal upon the recommendation of the Commission.

(f) "Member" means a member of the Commission and that term also includes the Chairperson.

(g) "Constitution" means the Constitution of Nepal. Chapter-2

Functions, Duties, and Powers of the Commission

3.

Functions, Duties, and Powers of the Commission: In addition to the functions, duties, and powers mentioned

in Article 256 of the Constitution, the other functions, duties, and powers of the Commission shall be as follows: - (a) To review, monitor, and evaluate policies and programs related to the Dalit community, (b) To study and research the existing legal provisions concerning Dalits and recommend to the Government of Nepal necessary reforms in such laws for the protection and promotion of the rights and interests of the Dalit community and the empowerment of that community, (c) To make recommendations to the Government of Nepal regarding the protection and promotion of the rights and interests of the Dalit community and the empowerment of that community, Amended by the Some Nepal Acts Amendment Act, 2075.(d) To increase social awareness against ideas, behaviors, practices or caste-based discrimination, untouchability, or social evils that show hierarchy among individuals or communities based on caste, tribe, or origin, justify social discrimination on the basis of caste or tribe, or are based on caste supremacy or hatred, and to prepare and distribute advocacy materials for such purposes, Amended by the Some Nepal Acts Amendment Act, 2075.(e) To formulate and implement necessary information, awareness-raising, and educational programs for the protection and promotion of the rights and interests of the Dalit community and for the empowerment of such ?community,? Amended by the Some Nepal Acts Amendment Act, 2075.(f) To monitor the implementation of international treaties and agreements to which Nepal is a party concerning the Dalit community and to make necessary recommendations or suggestions to the Government of Nepal for ?implementation,? (g) To conduct detailed study and research on the identity of the Dalit community and recommend to the Government of Nepal to list the surnames, (h) To review, monitor, and evaluate awareness-raising programs conducted by the Government of Nepal and other organizations for the protection, promotion, and empowerment of the rights and interests of the Dalit community, (i) To cause monitoring of the implementation status of recommendations made by the Commission, (j) To formulate and implement a code of conduct for the Chairperson, Members, and employees of the Commission, (k) To approve the annual program of the Commission. 4. May Seek Advice and Consultation: The Commission may consult with or seek advice from other constitutional bodies, government offices, or public institutions regarding its work and proceedings. 5.

May Engage the Services of Experts: If any work to be performed in accordance with the Constitution, this Act, and prevailing federal law cannot be accomplished by the human resources working in the Commission, the Commission may, stating the reason therefor, engage the services of experts in accordance with prevailing federal law. 6. May Form Committees or Task Forces: (1) For the purpose of performing any work of a special nature relating to the Commission, the Commission may, by specifying the working procedure, form any committee or task force. (2) The terms of reference of a committee or task force formed under subsection (1) shall be as determined by the Commission at the time of forming such committee or task force. (3) While forming a committee or task force under subsection (1), representation must be ensured on the basis of the principle of proportional inclusion also within the Dalit community as provided for in the Constitution. 7. May Coordinate and Cooperate: The Commission may, as necessary, coordinate and cooperate with government bodies or public institutions. Chapter-3 Procedure Relating to Complaint Proceedings 8. May Lodge Complaints: (1) If any person or institution has caused caste-based discrimination, untouchability, or social evil, or has denied the rights of Dalits, the victim or any person on their behalf may lodge a written or oral complaint before the Commission regarding such matter. (2) Upon receiving a complaint under subsection (1), the Commission shall register such complaint in the register book as prescribed. (3) If the Commission receives information through any other means related to a matter under subsection (1), the Commission shall record such information in writing and register it in the register book pursuant to subsection (2). (4) No fee shall be charged for lodging a complaint before the Commission under this Act. 9. Preliminary Inquiry and Action: (1) The Commission shall conduct a preliminary inquiry upon the

complaint received under subsection (1) of Section 8 or information received under subsection (3) thereof. (2) While conducting a preliminary inquiry under subsection (1), if it appears prima facie that an adverse effect has been caused to the rights and interests of Dalits, the Commission may immediately order the relevant person, body, or office bearer to stop such act. 10.

Inquiry into Complaint: (1) If, upon conducting a preliminary inquiry under Section 9, it appears that an adverse effect has been caused to the rights and interests of the Dalit community, the Commission may, itself or by forming a committee as necessary or through an authorized officer employee, conduct or cause to be conducted an inquiry into such complaint as prescribed. (2) While conducting an inquiry under subsection (1), the Commission, the inquiry committee, or the authorized officer employee shall have the following powers: - (a) To call any person and take information, (b) To require any person to produce any document or evidence, (c) To make spot inspections as necessary, (d) To request any government or public office to provide any document or its copy related to the subject of the investigation. (3) Upon completion of the inquiry under subsection (1), the report thereof shall be submitted to the Commission. (4) Other provisions relating to the inquiry of complaints shall be as prescribed. 11. **When Inquiry Not to Be Made:** Notwithstanding anything contained in Section 9 or 10, the Commission shall not conduct an inquiry or proceedings on a matter that is being investigated or has already been investigated by some other body in accordance with prevailing law. 12. **Recommendation for Filing a Case:** (1) If, during the inquiry under Section 10, it appears that a case needs to be filed, the Commission shall, within the limitation period for filing a case on such matter, make a recommendation to the Amended by the Some Nepal Acts Amendment Act, 2075. relevant body to file a case, and also inform the concerned person thereof. (2) While making a recommendation under subsection (1), the Commission may also provide to the relevant body copies of facts, documents, and evidence collected during the inquiry that may assist in filing the case. (3) If a written request to prosecute the case is made under subsection (1), the Amended by the Some Nepal Acts Amendment Act, 2075. concerned body shall conduct the necessary investigation of that matter and decide whether or not to institute proceedings. 13. **May Dismiss a Complaint:** (1) If, upon inquiry under Section 9 or 10, the complaint appears to be unfounded, the Commission may, stating the reason therefor, dismiss such complaint. (2) If the Commission decides to dismiss a complaint under subsection (1), it shall inform the concerned complainant within seven days from the date of such decision. 14.

Provisions Relating to Mediation: (1) Notwithstanding anything contained elsewhere in this Act, if the concerned parties jointly submit an application requesting mediation regarding any complaint pending before the Commission, the Commission may cause mediation to be done on matters that are subject to compromise in accordance with prevailing law. (2) After mediation is done under subsection (1) regarding any complaint, no complaint shall lie again on other matters except regarding the non-implementation of the mediation agreement. (3) Other provisions relating to mediation shall be as prescribed. 15. **Implementation of Recommendation or Decision:** (1) The Commission shall send a written communication to the concerned person, body, or office bearer for the implementation of its recommendation or decision made in accordance with the Constitution or this Act. (2) If a written communication is received from the Commission under subsection (1), the concerned person, body, or office bearer shall implement it and inform the Commission accordingly. (3) If the matter communicated in writing by the Commission under subsection (1) cannot be implemented for any reason, the concerned office bearer, person, or body shall immediately inform the Commission of the reason therefor. (4) Upon receiving information under subsection (3), the Commission may reconsider and decide on such matter and accordingly send a written communication to any person, body, or office bearer to implement any matter. Chapter-4 Operation of the Commission 16. **Office of the Commission:** (1) For the operation of the Commission, there shall be a central office of the Commission in the

Kathmandu Valley. (2) The Commission may establish offices in provinces as required. 17. Meeting of the Commission: (1) The functions to be performed under the Constitution or this Act shall be performed by a decision of the meeting of the Commission. (2) The meeting of the Commission shall be held on the date, time, and place specified by the Chairperson as required. (3) The Secretary of the Commission shall send a notice, specifying the date, time, and place of the meeting, together with the agenda of subjects to be discussed at the meeting, to all Members generally forty-eight hours before the meeting. (4) If any Member desires to discuss any subject in addition to the subjects mentioned in the agenda under subsection (3), he/she shall give a notice to the Secretariat of the Commission, stating the subject and reason for such discussion, at least twenty-four hours before the meeting.

Upon receiving such notice, the Secretary of the Commission shall inform all Members thereof, and such subject shall be deemed to have been included in the agenda of the meeting of the Commission.

(5) Notwithstanding anything contained in subsections (3) and (4), with the consent of all Members present at the meeting of the Commission, a subject not included in the agenda may also be discussed and decided upon.

(6) If more than fifty percent of the Members currently holding office in the Commission are present, it shall be deemed to constitute a quorum for the meeting of the Commission.

(7) The Chairperson shall preside over the meeting of the Commission.

(8) Decisions of the Commission shall be made by a majority of votes, and in case of a tie, the Chairperson shall cast the deciding vote.

(9) The Secretary of the Commission shall prepare a record of the decision of the Commission and maintain it with the signatures of the Chairperson and Members.

(10) Amended by the Some Nepal Acts Amendment Act, 2075. An officer of the Nepal Civil Service, gazetted first class, shall act as the Secretary of the Commission. Until such an employee is appointed, the most senior employee of the Commission shall act as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission. 18. Not to Participate in Decision-Making Process if There Is Conflict of Interest: If any Member of the Commission has an interest, concern, or stake in any matter pending before the Commission, or if a close relative of his/her is directly affected, such Member shall inform the Commission of such fact in advance and shall not participate in the decision-making process of the Commission on such matter. 19. Division of Work: The division of work among the Chairperson and Members shall be as specified by the Commission. 20. To Act as Acting Chairperson: In case the office of the Chairperson becomes vacant for any reason, Amended by the Some Nepal Acts Amendment Act, 2075. if he/she is unable to perform his/her duties pursuant to clause (6) of Article 101 of the Constitution, has gone on a foreign visit, or remains on leave for more than seven days, the senior-most Member of the Commission shall act as the Acting Chairperson of the Commission. 21. No Hindrance to the Work and Proceedings of the Commission: The work and proceedings of the Commission shall not be hindered merely by reason of the vacancy in the seat of any Member. Omitted by the Some Nepal Acts Amendment Act, 2075

Chapter-5

Miscellaneous

Organizational Structure and Employees of the Commission: (1) The organizational structure and staffing of the Commission shall be as approved by the Government of Nepal. (2) Employees required for the operation of the Commission shall be provided by the Government of Nepal. 23. To Observe Dignity of Office and Conduct: (1) The Chairperson and Members of the Commission shall observe the following dignity of office: - (a) To discharge their official duties independently, impartially, and honestly in order to protect and promote the rights and interests of the Dalit community and to empower the Dalit community, (b) Not to do any act that disturbs relations among different castes, communities, and sects. (2) The Chairperson and Members of the Commission shall observe the conduct of office as provided for in this Act or prevailing law. 24. To Provide Cooperation in Work and Proceedings: If the Commission requests the cooperation of any body or office bearer in the course of performing its functions, it shall be the duty of such body or office bearer to provide such cooperation. 25. May Send Written Communication for Implementation: If any body or office bearer knowingly fails to implement an order, decision, or recommendation given by the Commission, or fails to provide necessary cooperation to the Commission, under the Constitution or this Act, the Commission may send a written communication to the controlling body or authority of such body or office bearer for the implementation of such matter. 26. Annual Report: In the annual report to be submitted to the President by the Commission in accordance with Article 294 of the Constitution, the following subjects shall also be included in addition to other matters: - (a) Details of the implementation and cost expenditure of the annual program of the Commission, (b) Details of complaints lodged with the Commission and details of decisions and orders made by the Commission on such complaints, (c) Details of suggestions given by the Commission to the Government of Nepal or any other body and recommendations made to such body, (d) Status of implementation of suggestions and recommendations under clause (c), (e) Financial and physical resources of the Commission and the status of their utilization, (f) Details of other work and proceedings carried out in relation to the fulfillment of the duties to be performed by the Commission under this Act. 27.

Contact with Government of Nepal: The Commission shall maintain contact with the Government of Nepal through Amended by the Some Nepal Acts Amendment Act, 2075. the Ministry of Federal Affairs and General Administration. 28. Delegation of Powers: The Commission may, as required, delegate any of the powers conferred upon it under the Constitution and this Act to the Chairperson, Member, Government of Nepal, Provincial Government, any body, or any authorized employee of a local government, subject to the prescribed conditions, for exercise and fulfillment. 29. Power to Make Rules: (1) The Commission may make necessary rules for the implementation of this Act. (2) If the rules made under subsection (1) include matters involving financial burden or liability on the Government of Nepal, the Commission shall Amended by the Some Nepal Acts Amendment Act, 2075. obtain the consent of the Government of Nepal, Ministry of Finance. (3) The rules made by the Commission under subsection (1) shall come into force from the date of publication in the Nepal Gazette. 30. Power to Issue Directives: The Commission may, for the smooth operation or cause of operation of its work, issue necessary directives under this Act and the rules made under this Act. 31. Repealed by the Some Nepal Acts Amendment Act, 2075. 32. Protection of Acts Done in Good Faith: No legal proceedings shall be instituted against any office bearer, employee, or any person deputed by the Commission in respect of any act done in good faith pursuant to Amended by the Some Nepal Acts Amendment Act, 2075. this Act or the rules made under it. 33. Repeal and Saving: (1) The National Dalit Commission formed pursuant to the notice published in the Nepal Gazette on Chaitra 6, 2058 (March 20, 2002) is hereby dissolved. (2) The work and proceedings done by the Commission under subsection (1) shall be deemed to have been done under this Act. (3) The office bearers holding office in the National Dalit Commission under subsection (1) at the time of the commencement of this Act shall automatically vacate

their office after the commencement of this Act. Repealed by the Some Nepal Acts Amendment Act, 2075.
Schedule